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and hear your Evidence. Cryer, make Proclamation.

Cryer. O yes! If any one will give Evidence on behalf of our Sovereign Lord the King against the Defendants of the Matters whereof they are impeached, let them come forth, and they shall be heard.

Mr. Wright. May it please your Lordship, and you Gentlemen of the Jury, this is an Information exhibited by his Majesty's Attorney-General against the most Reverend my Lord Archbishop of *Canterbury*, and six other honourable and noble Bishops in the Information mentioned. And the Information sets forth, That the King, out of his Clemency and benign Intention towards his Subjects of this Kingdom, did put forth his Royal Declaration, bearing Date the fourth Day of *April*, in the third Year of his Reign, entitled, *His Majesty's Gracious Declaration to all his Loving Subjects for Liberty of Conscience*; and that, afterwards, the twenty seventh of *April*, in the fourth Year of his Reign, he published another Declaration, both which have been read to you; and for the further Manifestation and Notification of his Grace in the said Declaration, bearing Date the twenty-seventh of *April* last, his Majesty did order, That the said Declaration should be read on the twentieth and twenty-seventh of the same Month, in the Cities of *London* and *Westminster*, and ten Miles about, and on the third and tenth of *June*, throughout the whole Kingdom; and that the Right Reverend the Bishops should
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send the said Declaration to be distributed throughout their respective Diocesses, to be read accordingly. But that the said Archbishop and Bishops, the eighteenth of *May*, in the said fourth Year of his said Majesty's Reign, having conspired and consulted among themselves to diminish the King's Power and Prerogative, did falsely, unlawfully, maliciously, and scandalously, make, compose, and write, a false, scandalous, malicious and seditious Libel, under Pretence of a Petition; which Libel they did publish in the Presence of the said King; the Contents of which Libel you have likewise heard read. To this they have pleaded Not Guilty: You, Gentlemen, are Judges of the Fact; if we prove this Fact, you are to find them Guilty.

Mr. Att. Gen. May it please your Lordship, and you Gentlemen of the Jury, you have heard this Information read by the Clerk, and it has been likewise opened to you at the Bar; but before we go to our Evidence, perhaps it may not be amiss for us, that are of Council for the King, now in the Beginning of this Cause, to settle the Question right before you, as well to tell you what my Lords the Bishops are not prosecuted for, as what they are; First, I am to tell you, and I believe you cannot yourselves but observe, that my Lords are not prosecuted as Bishops, nor much less are they prosecuted for any Point or Matter of Religion, but they are prosecuted as Subjects of this Kingdom, and only for a temporal Crime, as those that have injured and affronted
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the King to his very Face ; for it is laid to be done in his own Presence : In the next place, they are not prosecuted for any Nonfeasance, or not doing or omitting to do any thing, but as they are Actors, for censuring of his Majesty and his Government, and for giving their Opinion in Matters wholly relating to Law and Government ; and I cannot omit here to take notice, that there is not any one thing, which the Law is more jealous of, or does more carefully provide for the Prevention and Punishment of, than all Accusations and Arraignments of the Government : No Man is allowed to accuse even the most inferior Magistrate of any Misbehaviour in his Office, unless it be in a legal Course, though the Fact is true ; no Man may say of a Justice of Peace to his face, that he is unjust in his Office ; no Man may come to a Judge, either by Word or Petition, You have given an unjust, or an ill Judgment, and I will not obey it, it is against the Rules and Law of the Kingdom, or the like ; no Man may say of the great Men of the Nation, much less of the great Officers of the Kingdom, that they do act unreasonably or unjustly, or the like ; least of all may any Man say any such thing of the King, for these Matters tend to possess the People, that the Government is ill administered, and the Consequence of that is, to set them upon desiring a Reformation, and what that tends to, and will end in, we have all had a sad and too dear bought Experience ; the last Age will abundantly satisfy us, whither such a Thing does
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tend: Men are to take their proper Remedies for Redress of any Grievances they lye under, and the Law has provided sufficiently for that: These Things are so very well known to all Men of the Law, and indeed to all the People of *England* of any Understanding, that I need not, nor will not, stand any longer upon it, but come to the Matter that is now before you, Gentlemen, to be tried: The Fact that we have laid, we must prove, rather to keep to the formality of a Tryal, than to pretend to inform you, or tell you, what you do not know, it is all publickly notorious to the whole World; but because we must go on in the regular Methods of Law, we shall prove the Facts in the Order they are laid in the Information. First, we take notice that his Majesty, of his great Clemency and Goodness to his People, and out of his desire that all his Subjects might live easily under him (of which, I think, never Prince gave greater or more plain Evidence of his Intentions that way) the fourth of *April*, One thousand six hundred eighty seven, he did issue forth his Royal Declaration for Liberty of Conscience; this Matter, without all question, was welcome to all his People that stood in need of it, and those that did not could not but say the thing in the Nature of it was very Just and Gracious; but presently it must be surmised, that the King was not in earnest, and would not, or could not make good his Promise: But to take away all Surmises, his Majesty was pleased, by his Declaration of the twenty seventh of

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